

2. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
*HEARING ON MOTION IN RE: STRIKE 4TH AMENDED COMPLAINT
FILED BY: GEICO INDEMNITY COMPANY
TENTATIVE RULING:

Denied as moot. See line 3.

3. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
HEARING ON DEMURRER TO: 4TH AMENDED COMPLAINT
FILED BY: GEICO INDEMNITY COMPANY
TENTATIVE RULING:

Before the Court is Defendant Geico Indemnity Company's Demurrer to Plaintiff's Fourth Amended Complaint ("FAC").

Defendant's Request for Judicial Notice is **granted**.

Factual Allegations and Procedural Background

Plaintiff filed her initial complaint on March 11, 2024. Geico filed a motion to quash and a demurrer to the complaint. While the demurrer was pending, Plaintiff filed a First Amended Complaint on July 2, 2024. Geico filed a demurrer and motion to strike directed toward the First Amended Complaint – which were not opposed by Plaintiff. As such, the Court sustained the demurrer and granted the motion to strike. The Court granted Plaintiff leave to amend.

On November 7, 2024, Plaintiff filed a Second Amended Complaint. Geico again filed a demurrer and motion to strike. On January 16, 2025, while the demurrer and motion to strike were pending, Plaintiff filed a Third Amended Complaint. The Court ultimately sustained the demurrer and granted the motion to strike relating to the Second Amended Complaint. The Court again granted leave to amend, noting that "the Third Amended Complaint filed on January 16, 2025, is accepted by this court as the current operative complaint."

Geico filed a demurrer and motion to strike directed toward the Third Amended Complaint. The Court sustained the demurrer in full and granted Plaintiff leave to amend.

Plaintiff filed her Fourth Amended Complaint ("4AC") on October 21, 2025. The 4AC alleges four causes of action against Defendant Geico: (1) Breach of Written Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Bad Insurance Faith, and (4) Negligence. Geico demurs to each of the causes of action as being uncertain and for failure to allege facts to support each cause of action.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and